



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PUDC-24-200 / 5th Street Towns / Final Plat
Date: December 2, 2024

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral December 9, 2024
- Public Services Committee December 17, 2024
- Final consideration December 23, 2024

Planning Commission Recommendation:

The Planning Commission heard this item at their December 2, 2024 meeting and voted to recommend the Governing Body approve this application with staff recommended acknowledgements:

- a. Reduction in parking from 2 spaces per unit to 1 space per unit.
- b. Reduction in rear setback.

The Planning Commission Staff report is attached.

Attachments:

1. Resolution
2. Final Map
3. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR THE 5TH STREET TOWNS, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED SOUTHEAST OF THE INTERSECTION OF WEST 5TH STREET AND SNYDER AVENUE)."

WHEREAS, 1105 Ashford LLC has subdivided said land in accordance with the statutes in such cases made and provided;

WHEREAS, 1105 Ashford LLC the owner of the above-described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements, and rights-of-way; and

WHEREAS, the above-described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as the 5th Street Towns, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

DEDICATION

Know all persons by these presents that; 1105 ASHFORD LLC, owners in fee simple of Lot 3, Block 13, Roberts Place, City of Cheyenne, Laramie County, Wyoming.

Have caused the same to be Surveyed, Vacated, and Replated to be known as, Holiday House, and do hereby declare the Subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires.

by: Brandon Swain, Member for 1105 Ashford LLC

ACKNOWLEDGEMENT

STATE OF _____ } SS
COUNTY OF _____ }

The foregoing instrument was acknowledged before me this _____ day of _____ 2024,
by Brandon Swain, Member, 1105 Ashford LLC.

Notary Public,

My Commission Expires: _____

APPROVALS

Approved by the City of Cheyenne Planning Commission this
_____ day of _____ 2024.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this
_____ day of _____ 2024.

Mayor _____ ATTEST: _____ City Clerk

NOTES

1. BASIS OF BEARINGS - CITY OF CHEYENNE CONTROL NETWORK FROM CONTROL POINTS RIDGE AND EAST. WYOMING STATE PLANE COORDINATES, EAST ZONE, NAD83-2011, US SURVEY FEET, SHOWN AS (NAD83WT-E).
2. ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON 3/4" REBAR.
3. NO PORTION OF THE LANDS CONTAINED WITHIN THIS RE- PLAT BOUNDARY SHALL BE SUBJECT TO ANY 100- YEAR FEMA SFHA PER F.I.R.M. PANEL No.5602C1352F, DATED JANUARY 17, 2007.

LEGEND

- SET 3/4" X 24" LONG REBAR WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- ⊙ FOUND 3/4" IRON PIPE
- (R) DENOTES RECORD DATA

VACATION STATEMENT

IT IS THE INTENT OF THIS REPLAT TO VACATE ALL OF LOT 3, BLOCK 13, ROBERTS PLACE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, EXISTING EASEMENTS TO REMAIN.

VICINITY MAP



FILING RECORD

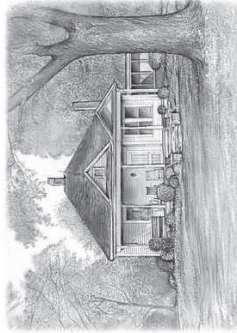
CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



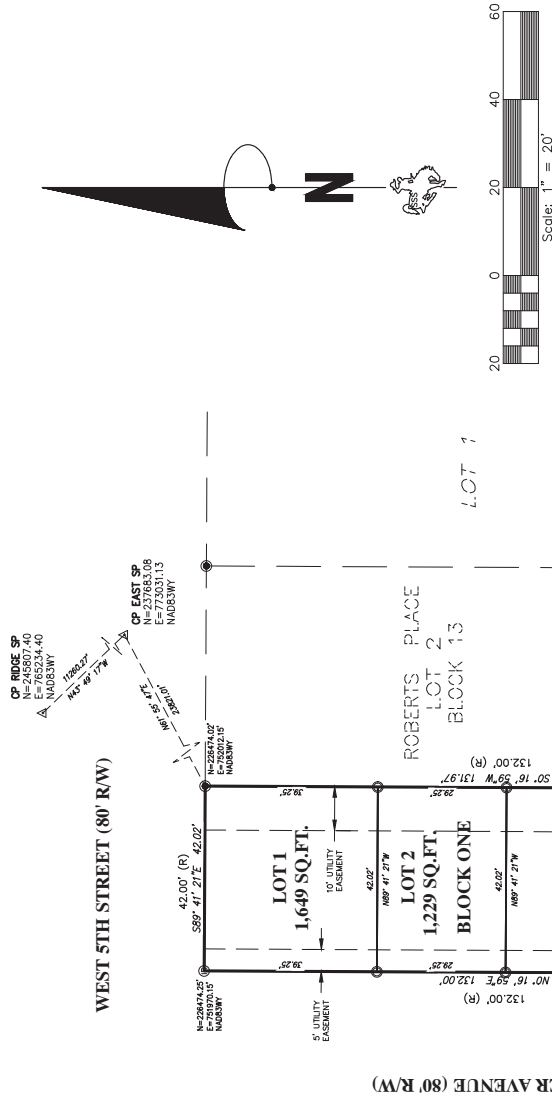
STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1105 WEST 10th ST. CHEYENNE, WY. 82001 o (307) 634-7373
756 GILBERT ST. WHEATLAND, WY. 82201 o (307) 323-8788
www.SteelSurvey.com o j.b.jones@SteelSurvey.com

CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED MARCH 2024



5TH STREET
TOWNS

AN EXPEDITED REPLAT
OF LOT 3, BLOCK 13,
ROBERTS PLACE,



REVISED: 11/12/2024
24136 ADMIN.DWG
SEE #222275



A COMMUNITY OF CHOICE

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION
DECEMBER 2, 2024
STAFF REPORT

FILE: PUDC-24-200: 5th Street Towns (Expedited Review)

REQUEST: Subdivide a lot into 4 lots.

LOCATION: Southeast of the intersection of W 5th Street and Snyder Avenue.

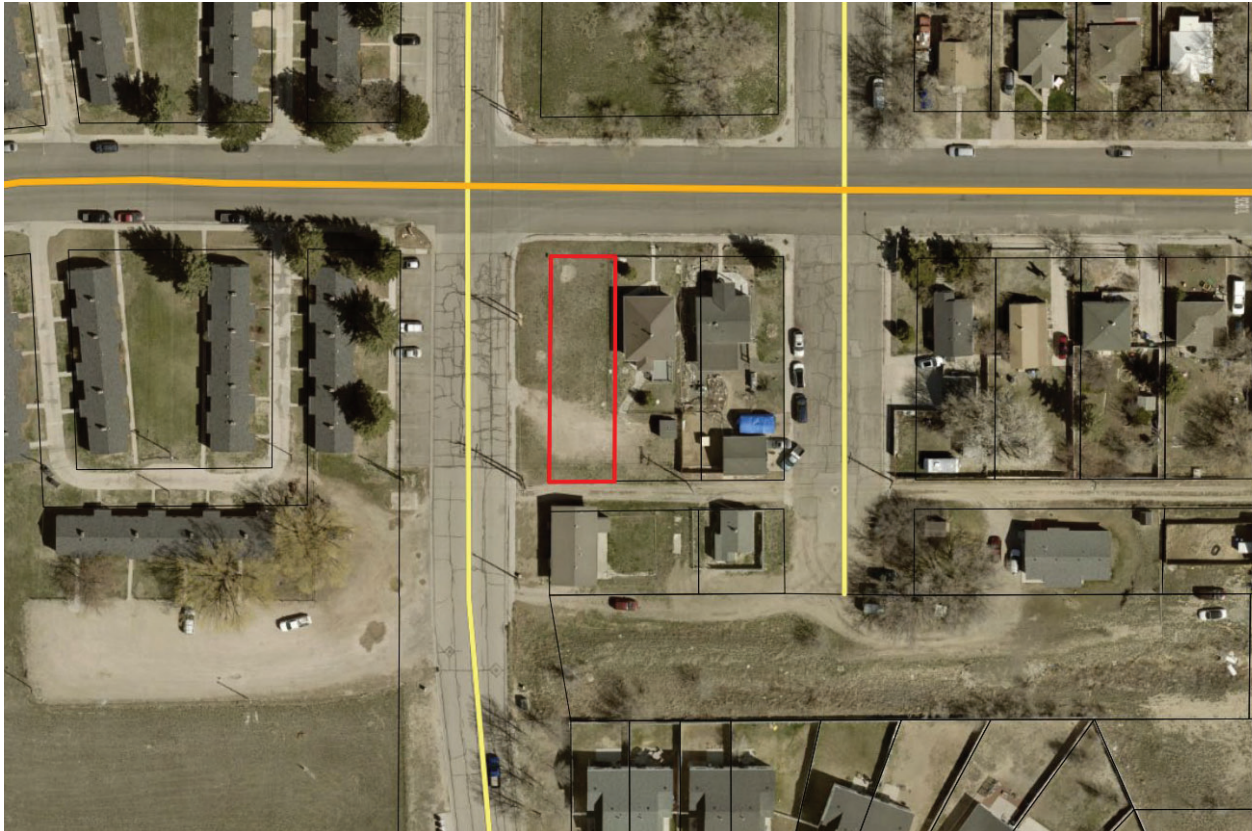
APPLICANT: Brandon Swain

OWNER: 1105 Ashford LLC

ZONING: MR Medium-density Residential

PURPOSE: A plat creating four townhouse lots.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the 5th Street Towns Preliminary Plat, advancing the Final Plat to the Governing Body with staff recommended conditions and acknowledgements.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a preliminary plat for roughly 0.13 acres of land. The subject property is vacant. The proposed plat would subdivide the parcel into four townhouse lots. These lots would meet the requirements to be considered AD1 Lots, which are permitted in the MR Medium-density Residential zone.

Townhome (“attached”) lots are not allowed front access if the lot is less than 36’ wide. The plat does not provide an access easement or alley for access to the central lots. The applicant is not intending to provide driveways or garages with this development and will utilize on-street parking. Due to the frontage of the lots, two full parking spaces cannot be provided adjacent to each individual lot. If the development is taken collectively, the four lots proposed with available on-street parking would be able to provide at least 7 parking spaces, but the UDC only allows Staff to consider the area directly abutting each individual lot when enforcing parking requirements. Should the Planning Commission and the Governing Body find the development pattern acceptable and approve the plat with the understanding of the product proposed, an administrative adjustment would be granted by Staff for reduced parking to one space per unit.

Although the plat as proposed meets all dimensional standards in the UDC for AD1 lot types, the specific product desired by the applicant would require setback relief. Should the Planning Commission and the Governing Body find the development pattern acceptable and approve the plat with the understanding of the product proposed, an administrative adjustment would be granted by Staff for reduced rear setback. The reduction would be to 10feet.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	MR (Medium Density Residential)	Vacant
North	Urban Residential	MR	Vacant
South	Urban Residential	MR	Single-family
East	Urban Residential	MR	Single-family
West	Urban Residential	MR	Multi-family

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

On the future land use map found in PlanCheyenne, the subject land and surrounding area has been designated as Urban Residential. The Urban Residential designation encourages a range of more intensive residential uses, although the intent is not to change existing stable neighborhoods. The existing neighborhood has a mix of multifamily, single-family, and duplex development. The proposed development fits within the range of the existing neighborhood, while providing a different housing option.

Foundation 1 of PlanCheyenne encourages community growth. This development is in response to market demands and is within the Urban Service Boundary. The development patterns proposed by this plat are compatible with the designations found on the future land use map.

Foundation 7 of PlanCheyenne supports the use of existing infrastructure and timely provision of services (including emergency and education services). This development is proposed in an area which has largely existing infrastructure and limited expansion of infrastructure is necessary.

The application **complies** with this review criterion.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The proposed plat is in an area with existing infrastructure and no changes to the street or utility network are proposed. The proposed plat would not change the existing conditions in a way which would adversely affect the ability of surrounding properties to redevelop.

The application **complies** with this review criterion.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Community Facility Fees (4.2):

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. Lands reserved as unbuildable (for right-of-way, detention, parks, remainder lots, etc), are exempt from fees. The acreage in the plat is small enough the minimum fee of **\$250** of Park Fees will be due at signing of the plat.

Land Acquisition Fee	\$125
Infrastructure Fee	\$125
Total Land Acquisition & Infrastructure Fees	\$250

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Residential Enhancement Fee \$400 per dwelling unit

Transportation Network (4.3):

This plat is occurring within an area of the community which has been previously developed. There is limited opportunity to modify the block layout or street network.

Townhome (“attached”) lots are not allowed front access if the lot is less than 36’ wide. The plat does not provide an access easement or alley for access to the central lots. These lots would need relief from UDC 4.3.6.c to allow front access. The applicant is not requesting front access to the lots for this subdivision.

Open Space (4.4):

Open space is required at 750sqft per unit or 8% of the gross development area, whichever is less. However, due to the nature of this application, plat-level open space is not required.

Required Improvements (4.5):

This plat appears to be able to provide all required utilities to the lots within this development.

Public Safety Fees (4.6):

Public Safety Fees are required at the time of construction of any residential building on any of the proposed lots. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No specific phasing is proposed with this project.

Review criterion **not applicable**.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A drainage worksheet was submitted and reviewed. There were no concerns with drainage at the plat level for the project as presented.

Traffic:

A transportation worksheet was submitted and reviewed. There were no concerns with traffic at the plat level for the project as presented.

The application **complies** with this review criterion.

- 6) Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

All lots proposed for development are buildable lots in this zone district. The proposed lots would be considered AD1 Lot Types for townhouse style development. The lots being created are shallow lots which would only allow a property to have a 17' deep dwelling unit, if the unit were to meet all setbacks (a 42' deep lot with a 5' front setback, 20' rear setback). There are dwelling units in the City which are as little as 20' deep; however that is not the product the applicant is proposing. The applicant has requested relief for the rear setback as their proposed product would encroach by 10-feet into the rear setback. Should the Planning Commission and Governing Body accept the reduction in the rear setback, Staff will grant the Administrative Adjustment with the approval of this plat.

Due to the width of the lots, there is not enough space to provide two parking spaces for each lot in the area directly in front of each lot, and the applicant is not proposing driveways or garages. If the development is taken collectively, the four lots proposed with available on-street parking would be able to provide at least 7 parking spaces, but the UDC only allows Staff to consider the area directly abutting each individual lot when enforcing parking requirements. If this property was developed as a four-plex and every unit was two or more bedrooms, only six total spaces would be required, which the applicant could provide on street. The applicant could seek a multifamily-style use by getting conditional use approval, rather than subdividing the lot into four individual lots. Should the Planning Commission and Governing Body accept the reduction in parking, Staff will grant the Administrative Adjustment with the approval of this plat.

The Administrative Adjustment Review Criteria is attachment number 6. Also attached is the applicant's requested adjustment.

The application **complies** with this review criterion.

- 7) All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

All proposed lots are proposed as buildable lots. The Plat does not propose any lots subject to this criterion.

Review criterion **not applicable**.

- 8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

This plat will not create any undue influence on existing or potential development. While the lots proposed are smaller than many of the lots in the area, there are other lots that have multiple units on a single lot.

The application **complies** with this review criterion.

9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)

Remainder lots are not proposed with this plat.

The application **complies** with this review criterion.

11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)

No conditions or modifications have been placed on the preliminary plat.

The application **complies** with this review criterion.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Minor clerical corrections.
2. Utility and easement correction.

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application as submitted by the applicant.

As noted in criteria 6, the applicant has requested relief from the rear setback requirements and parking requirements for their proposed product. Staff would ask that it be taken into consideration when reviewing the plat.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

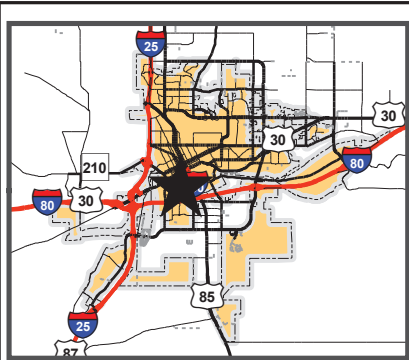
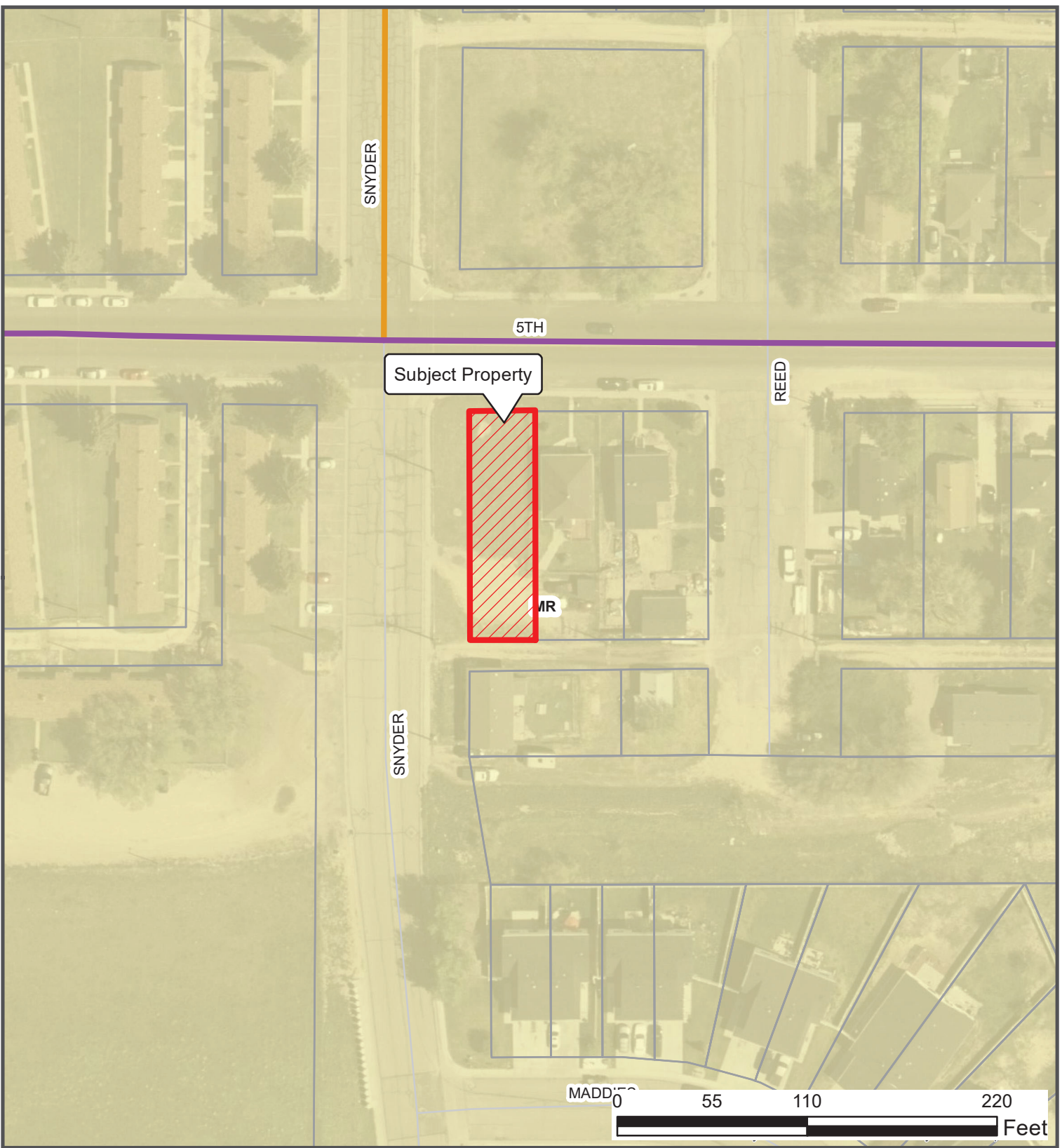
STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body with the following acknowledgements:

1. Acknowledgements of relief:
 - a. Reduction in parking from 2 spaces per unit to 1 space per unit (Administrative Adjustment)
 - b. Reduction in rear setback (Administrative Adjustment)

ATTACHMENTS:

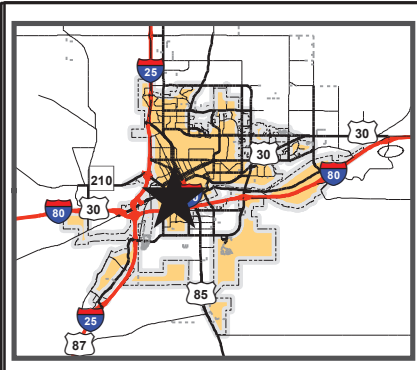
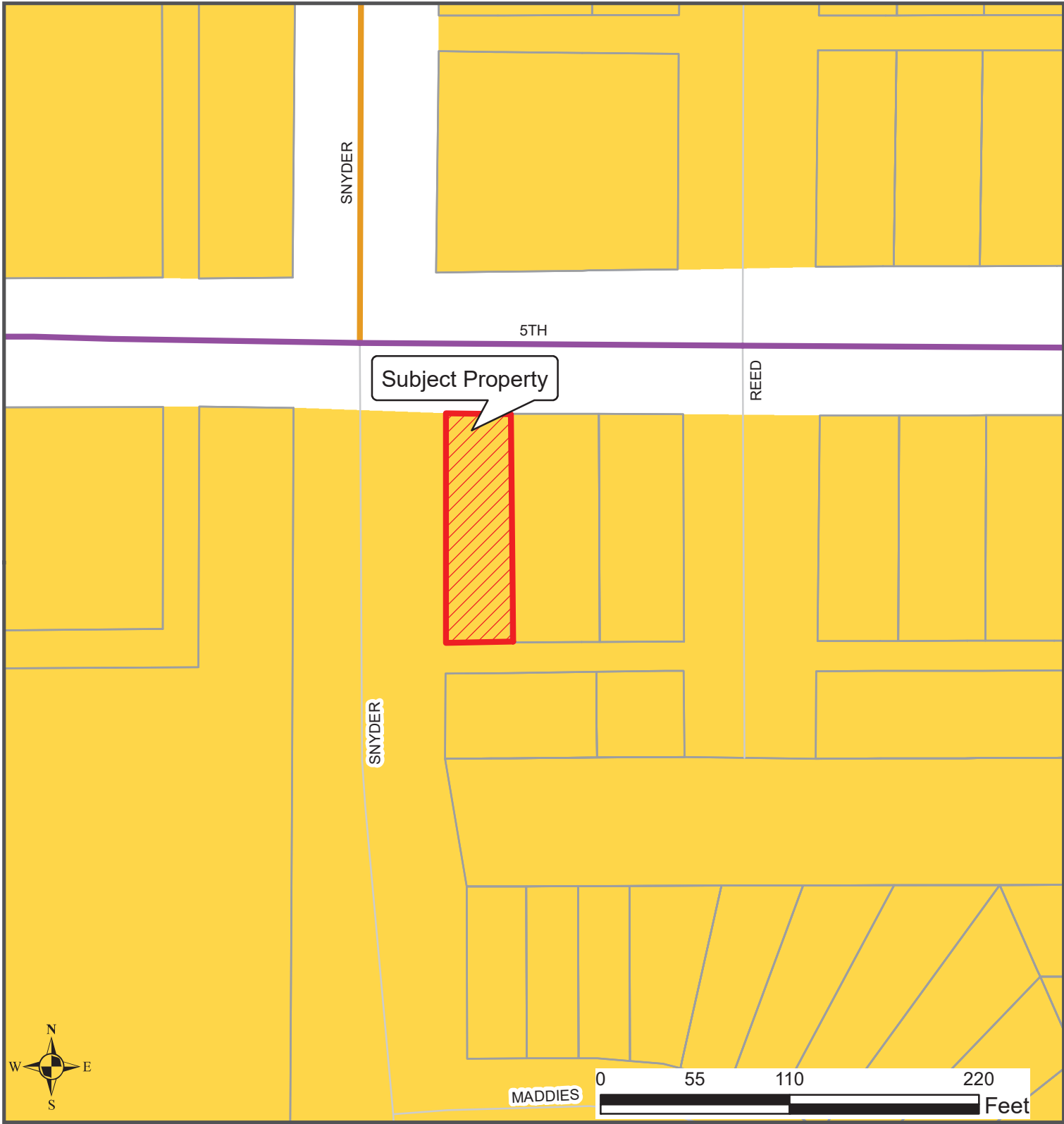
1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat
5. Final Plat
6. Administrative Adjustment Information



Attachment 1: Zoning Map PUDC-24-200

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend	
	Nov19_CityLimits
	Interstate
	Principal Arterial
	Minor Arterial
	Major Collector
	Minor Collector
	Local
	Private
	Platted not built
	HR / High Density Residential
	MR / Medium Density Residential
	LR / Low Density Residential
	NR-2 / Neighborhood Residential - Med. Density
	NR-3 / Neighborhood Residential - High Density
	AR / Agricultural Residential
	A-1 / Agricultural and Rural Residential
	A-2 / Agricultural
	AG / City Agricultural
	MUR / Mixed Use Residential Emphasis
	CBD / Central Business District
	CB / Community Business
	NB / Neighborhood Business
	MU / Mixed Use - County
	MUB / Mixed Use Business Emphasis
	MUE / Mixed Use Employment Emphasis
	HI / Heavy Industrial
	LI / Light Industrial
	P / Public
	AD / Airport District
	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map PUDC-24-200

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Legend

	City Limits		Agricultural/Rural		Industrial
	Interstate		Rural Residential		Central Business District
	Principal Arterial		Urban Transition Residential		Community Business
	Minor Arterial		Urban Residential		Public and Quasi-Public
	Major Collector		Mixed-Use Residential		Military/Federal
	Minor Collector		Mixed-Use Commercial		Open Space and Parks
	Local		Mixed-Use Employment		
	Platted not built				
	Ownership				



PUDC-24-200

Plat - Expedited

Status: Active

Submitted On: 10/16/2024

Primary Location

0 W 5TH ST

Cheyenne, WY 82007

Owner

1105 ASHFORD LLC

1621 CENTRAL AVE CHEYENNE,

WY 82001

Applicant

 Brandon Swain

 307-214-9634

 bswainy23@gmail.com

 2856 Deming Blvd

Cheyenne, WY 82001

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

An expedited review is when both a preliminary and final plat are submitted to the Planning Commission together. To be eligible for expedited review the preliminary plat shall contain no significant planning, design, and engineering issues. Upon determination by staff, the applicant may submit a preliminary and final plat to the Planning Commission.*



I acknowledge the that Expedited status is not guaranteed.*



Written Statement*

I've had a few pre applications and approvals on this project (variance, admin adjustment, conditonal use approval for multifamily, and admin plat). Water and sewer is in place for 4 townhomes conforming to frontage requirements. This project will not contain garages or driveways. Adequate on street parking for up to 8 vehicles.

Project Name*

5th St Towns

Plat Title*

5th St Towns

Current Subdivision* 

Roberts Place

Project area (acres)*

0.13

Proposed Lots* 

4

Pre-application Meeting Date

—

Park Fees are due at time of signing of the final plat mylar (see UDC 4.2.5). I acknowledge that this plat may be required to pay plat-level Park Fees.*



Public Improvements are required with platting  actions. Please select the option that best demonstrates your intent for the public streets and other infrastructure adjacent to or within the plat boundary.*

Owner(s) (or developers) behind the plat application will construct the needed infrastructure.

Review Criteria

The following review criteria are found in the UDC regarding a Preliminary Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.1.2.d.1).*



The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (2.1.2.d.2).*



The division of land meets the purposes, intent, and all applicable standards in Article 4 (2.1.2.d.3).*



Any phasing proposed in the application is clearly indicated and demonstrates a logical and wellplanned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned (2.1.2.d.4).*



The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts (2.1.2.d.5).*



Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements (2.1.2.d.6).*



All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance (2.1.2.d.7).*



The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property (2.1.2.d.8).*



The application is not harmful to the public health, safety, and welfare (2.1.2.d.9).*



Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description (2.1.2.d.10).*



The following review criteria are found in the UDC regarding a Final Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan (2.1.3.d.1).*



The application meets any conditions or modifications of the approved preliminary plat (2.1.3.d.2). (Not applicable at time of application for an expedited plat)

The application meets the purposes, intent, and applicable standards of Article 4 (2.1.3.d.3).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Brandon Swain

Oct 16, 2024

DEDICATION

Know all persons by these presents that; 1105 ASHFORD LLC, owners in fee simple of Lot 3, Block 13, Roberts Place, City of Cheyenne, Laramie County, Wyoming.

Have caused the same to be Surveyed, Vacated, and Replated to be known as, Holiday House, and do hereby declare the Subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires.

by: Brandon Swain, Member for 1105 Ashford LLC

ACKNOWLEDGEMENT

STATE OF _____ } SS
COUNTY OF _____ }

The foregoing instrument was acknowledged before me this _____ day of _____ 2024,
by Brandon Swain, Member, 1105 Ashford LLC.

Notary Public,

My Commission Expires: _____

APPROVALS

Approved by the City of Cheyenne Planning Commission this
_____ day of _____ 2024.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this
_____ day of _____ 2024.

Mayor _____ ATTEST: _____ City Clerk

NOTES

1. BASIS OF BEARINGS - CITY OF CHEYENNE CONTROL NETWORK FROM CONTROL POINTS RIDGE AND EAST. WYOMING STATE PLANE COORDINATES, EAST ZONE, NAD83-2011, US SURVEY FEET, SHOWN AS (NAD83WT-E).
2. ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON 3/4" REBAR.
3. NO PORTION OF THE LANDS CONTAINED WITHIN THIS RE- PLAT BOUNDARY SHALL BE SUBJECT TO ANY 100- YEAR FEMA SFHA PER F.I.R.M. PANEL No.5602C1352F, DATED JANUARY 17, 2007.

LEGEND

- SET 3/4" X 24" LONG REBAR WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- ⊙ FOUND 3/4" IRON PIPE
- (R) DENOTES RECORD DATA

VACATION STATEMENT

IT IS THE INTENT OF THIS REPLAT TO VACATE ALL OF LOT 3, BLOCK 13, ROBERTS PLACE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING. EXISTING EASEMENTS TO REMAIN.

VICINITY MAP



FILING RECORD

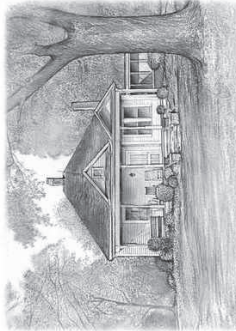
CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



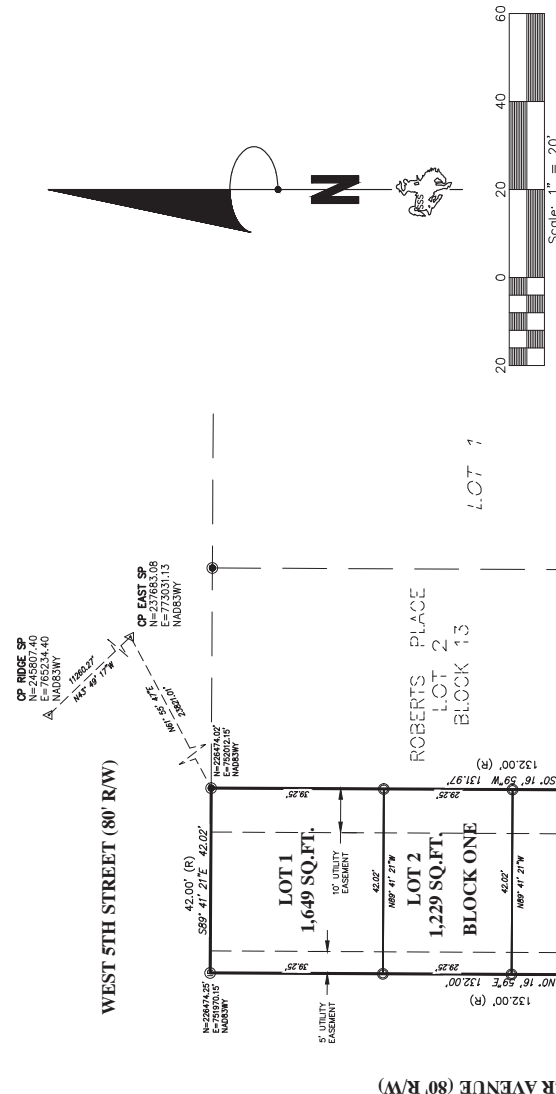
STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1105 WEST 10th ST. CHEYENNE, WY. 82001 o (307) 634-7373
756 GILBERT ST. WHEATLAND, WY. 82201 o (307) 323-8788
www.SteelSurvey.com o j.b.jones@SteelSurvey.com

CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED MARCH 2024



5TH STREET TOWNS

AN EXPEDITED REPLAT
OF LOT 3, BLOCK 13,
ROBERTS PLACE,



REVISED: 11/12/2024
24136 ADMIN.DWG
SEE #222275

ARTICLE 2

APPLICATIONS, PROCEDURES AND CRITERIA

2.3 APPEALS AND RELIEF

3. *Board Public Hearing.* The Board shall review the application subject to the criteria in this section. Upon the close of the public hearing the Board shall:
 - (a) Affirm the decision of the administrative official;
 - (b) Affirm the decision of the administrative official with specific conditions or modifications;
 - (c) Overturn the decision of the administrative official and make the decision that the Board determines should be made. No decision of the Board may exceed the authority granted to the administrative official under these regulations; or
 - (d) Postpone the application to collect additional information pertinent to the application or to take the matter under advisement. When postponed, new notice shall be required. The continued hearing shall occur at the next Board of Adjustment regular meeting, or at some other time within 60 days with the consent of the applicant. No application may be postponed more than once by the Board without the applicant's consent.
 4. *Effect of Decision.* The decision by the Board shall be final and issued in writing. Any person aggrieved by a final decision of the Board may appeal the decision as provided in the Wyoming State Statutes.
 - d. *Review Criteria.* In reviewing and deciding on an appeal of an administrative decision the Board shall use the following criteria:
 1. Whether the decision of the administrative official was a clear error, as opposed to fairly debatable, according to the provisions of these regulations.
 2. The interpretation instructions of these regulations.
 3. The purposes, intent, and design objectives of any standards that are subject to the appeal.
 4. The record on the application, including the official plans and policies of the City used to evaluate the application or make the decision.
 5. Whether the final decision and the grounds for relief requested in the appeal are within the authority granted by these regulations.
 6. Whether there are other more appropriate and applicable procedures to achieve the applicant's proposed objective, such as a plan amendment, text amendment, planned zoning districts, a zoning map amendment, or a variance.
- 2.3.4 Administrative Adjustment**
- a. *Intent.* The administrative adjustment process is intended to provide flexibility for application of specific standards to sites where it is clear that an alternative approach with minor or de minimis modifications of the standards will equally or better meet the purpose, intent or design objectives of these regulations.
 - b. *Applicability.* An application for administrative adjustment may be submitted by the owner or authorized agent in association with a site plan. Administrative adjustments have the following specific eligibility requirements:
 1. *Alternative Compliance.* Any design or dimension standard in these regulations that specifically includes considerations for alternative compliance subject to the review by the Director, and which gives criteria or parameters for the alternative compliance.
 2. *Planned Development Adjustments.* Any minor adjustments for a Form-based Code or PUD, which is not anticipated in the approved preliminary development plan and:
 - (a) increases the proposed density by 5% or less; or
 - (b) reduces the proposed public or common open space by 3% or less; or
 - (c) increases the proposed building footprint by 5% or less; or
 - (d) increases the proposed building height by 10% or 3', whichever is less, for buildings within 100' of the plan boundary; or
 - (e) increases the proposed building height by 20% or 10', whichever is less, for buildings more than 100' from the plan boundary.
 3. *Other Minor Adjustments.* Adjustments to any other dimensional or design standard that result in no perceived impact on abutting property and where flexibility in the standards will help promote reuse or rehabilitation of existing buildings and lots. In no case may an adjustment of more than 50% of any dimensional standard be considered to have "no perceived impact."
 - c. *Specific Procedures.* Applications for administrative adjustments shall follow the same procedures required for a site plan. The decision of the Director shall be given to the applicant in writing, and a copy shall be made available for public review.

d. **Review Criteria.** In considering an administrative adjustment, the Director shall find that all of the following criteria exist:

1. The relief requested is compatible with the character of the surrounding area in terms of building scale, building form, landscape, and site design.
2. The relief requested supports the Intent and Applicability statements of the zoning district, and meets and achieves the Design Objectives of any specific standards.
3. The relief requested is based upon sound planning or urban design principles that are professionally recognized and consistent with the Comprehensive Plan.
4. The relief requested is based on the context of the property, is not solely for the convenience of one particular application on the site, and is not generally applicable to other sites in the area.
5. The relief requested is the minimum necessary to meet the Intent and Applicability of the zoning district and the Intent of the Administrative Adjustment process.
6. The relief requested does not alter the general concept of any preliminary development plan or regulating plan applicable to the property, and specifically preserves the design excellence or outstanding public amenity that was the basis for the PUD or regulating plan.
7. The relief requested is within any specific bounds of discretion granted by these regulations, or where no such bounds are specified results in only a minor modification of the standard that produces no perceived impact on abutting property.
8. Any review and recommendations of other reviewing bodies supports these findings.

2.4 TEXT AMENDMENTS AND ANNEXATIONS

- 2.4.1 Text Amendments
- 2.4.2 Annexations

2.4.1 Text Amendments

- a. **Intent.** Text amendments are intended to insure that the generally applicable laws contained in the Unified Development Code reflect the broad public interests, long-range planning goals, and general health, safety and welfare of the community.
- b. **Applicability.** The text amendment process is applicable to any change in the provisions of these regulations and may be initiated by:
 1. The City Council on its own initiative;
 2. The Planning Commission on its own initiative; or
 3. The Director or City Engineer on their own initiative.
- c. **Specific Procedures.** A text amendment shall require the following specific procedures:
 1. **Staff Review.** Prior to submittal to the Planning Commission, a text amendment shall require a review and report by Staff. Staff may submit the application to any pertinent outside agencies or other entities for review and comment. Staff shall schedule text amendments for one or more a public hearings with the Planning Commission.
 2. **Published Notice.** Notice shall be published in a newspaper of general circulation and to the City of Cheyenne website at least 15 days but no more than 21 days prior to the scheduled Planning Commission review indicating the general the nature of the amendment, the location for further information on that amendment, and the date, time and location of the Planning Commission review.
 3. **Planning Commission Public Hearing.** The Planning Commission shall review the amendment according to the criteria in this section. Upon the close of the public hearing(s), the Planning Commission shall:
 - (a) Recommend to the City Council that the amendment be approved;

